

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Post-Stay-Denial Mandate

Issued July 13, 2026

The judgment of this Court entered June 18, 2026, is now effective as the mandate. The Court exercised jurisdiction over the interlocutory appeal, rejected dismissal of the recurring-events controversy, and affirmed the Piedmont Booksellers Guild's entitlement to preliminary protection on the record presented. It remanded for the limited purpose of requiring a superseding preliminary-injunction order that states the restrained acts with the specificity required by Federal Rule of Civil Procedure 65(d) and makes an express, supported determination concerning security under Rule 65(c).

The judgment did not resolve the complaint's ultimate merits. It did not direct entry of a permanent injunction, decide damages, or hold every application of the Paid-Speaker Permit Ordinance invalid. The existing January 23 protection remains effective until the district court enters the compliant replacement described in the opinion. Issuance of this mandate does not create a gap in that protection and does not restrict neutral municipal authority over reservations, capacity, traffic, emergency access, sanitation, physical layout, competing uses, or materially changed operational conditions.

Each party shall bear its own appellate costs as directed in the judgment.

The City filed a timely motion on July 2 seeking to stay this mandate pending a possible petition for certiorari. The panel denied that request on July 6. Under Federal Rule of Appellate Procedure 41(b), the mandate became eligible for issuance seven days after that later denial, rather than on the earlier date calculated solely from expiration of the rehearing period. The clerk entered a release order after confirming that no intervening filing or order prevented issuance.

This mandate consists of a certified copy of the June 18 judgment, a copy of the accompanying opinion, and the appellate costs direction. It is effective upon issuance under Rule 41(c). The district court reacquires authority to implement the limited instructions and to continue management of the unresolved action consistently with the opinion. Any later request concerning changed circumstances, final relief, or enforcement must be addressed through an appropriate proceeding and supporting record.

The clerk transmits this mandate electronically to the clerk of the United States District Court for the District of South Carolina and provides notice to counsel for the City of Norvale and the Piedmont Booksellers Guild. The district clerk shall docket receipt in Case No. SYN-DSC-26-CV-0107. Issued under the seal of the Court on July 13, 2026.